SPECIAL ISSUE

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GAZETTE NOTICE NO. 3386

THE CONSTITUTION OF KENYA

COUNTY ASSEMBLY OF MANDERA

COUNTY ASSEMBLY OF MANDERA STANDING ORDERS

SPECIAL SITTING OF THE COUNTY ASSEMBLY

NOTICE is given to all Members of the County Assembly of Mandera that pursuant to Standing Order No. 29 (1) of the County Assembly of Mandera Standing Orders, on the request of the Majority Party Leader and with the support of the requisite number of Members, I have appointed Thursday, 12th March, 2026, as a day for a special sitting of the County Assembly.

The Special Sitting shall be held in the County Assembly Chamber, New Building, commencing at 9.30 a.m. to the conclusion of the business of the day.

The business to be transacted at the sitting shall be the consideration of:

1. The Report of Lands, Housing, Physical Planning and Urban Development Committee on Integrated Strategic Urban Development Plan (2015–2035) for Elwak Town.
2. The Report of Lands, Housing, Physical Planning and Urban Development Committee on Integrated Development Plan (IDeP) (2024–2028) for Mandera Municipality.
3. The Report of Lands, Housing, Physical Planning and Urban Development Committee on Integrated Development Plan (IDeP) (2022–2026) for Elwak Municipality.
4. The Mandera County Rating Bill, 2026.
5. The Mandera County Financing of Urban Areas Bill, 2026.
6. The Mandera County Cess Bill, 2026.
7. The Mandera County Tax Waivers Administration Bill, 2026.
8. The Mandera County Trade Licensing Bill, 2026.

In accordance with Standing Order 29 (4) of the County Assembly Standing Orders, the business specified in this notice shall be the only business before the County Assembly during the special sitting, following which the County Assembly shall stand adjourned until Tuesday, 24th March, 2026 at 9.00 a.m. in accordance with the County Assembly regular Calendar.

Dated the 9th March, 2026.

OMAR M. MAALIM,
Speaker, County Assembly of Mandera.

GAZETTE NOTICE NO. 3387

THE CONSTITUTION OF KENYA

COUNTY ASSEMBLY OF BUSIA

COUNTY ASSEMBLY OF BUSIA STANDING ORDERS

SPECIAL SITTINGS OF THE COUNTY ASSEMBLY

PURSUANT to Standing Order No. 27 (3) of the County Assembly of Busia Standing Orders, it is notified for the information of Members of the County Assembly and the general public that there shall be special sittings of the County Assembly to be held on Friday, 13th March, 2026 at 9.00 a.m., and 2.30 p.m., and Monday, 16th March, 2026 at 9.00 a.m., at the Busia County Assembly Buildings.

The business to be transacted at the special sittings shall be as follows:

Friday, 13th March, 2026 at 9.00 a.m.	Tabling of the Budget and Appropriations Committee Report on the Busia County Fiscal Strategy Paper for Financial Year 2026/2027 and Medium-Term Paper.
Friday, 13th March, 2026 at 2.30 p.m.	Debate of the Budget and Appropriations Committee Report on the Busia County Fiscal Strategy Paper for Financial Year 2026/2027 and Medium-Term Paper.
Monday, 16th March, 2026 at 9.00 a.m.	Debate of the Budget and Appropriations Committee report on the Busia County Fiscal Strategy Paper for Financial Year 2026/2027 and Medium-Term Paper (Resumption of debate).

In accordance with Standing Order No. 27 (4) of the Busia County Assembly Standing Orders, the business specified in this notice shall be the only business before the County Assembly during the Special Sitting.

Dated the 9th March, 2026.

FREDRICK W. ODILO,
Speaker, County Assembly of Busia.

GAZETTE NOTICE NO. 3388

THE CONSTITUTION OF KENYA

THE COUNTY GOVERNMENT ACT

(*Cap*. 265)

THE INTERGOVERNMENTAL RELATIONS ACT

(*Cap*. 265F)

INTERGOVERNMENTAL PARTNERSHIP AGREEMENT ON ISSUANCE OF BURSARIES AND SCHOLARSHIPS BETWEEN THE NATIONAL GOVERNMENT THROUGH THE MINISTRY OF EDUCATION AND COUNTY GOVERNMENT OF NAKURU DATED THE 19TH MAY, 2025

BETWEEN

The National Government of the Republic of Kenya, through the Ministry of Education, as represented by the Cabinet Secretary, whose registered office is Jogoo House B, P.O. Box 30040–00100, Nairobi (hereinafter referred to as the National Government, which expression shall where the context so admits include its successors and assigns) on the one part,

AND

The County Government of Nakuru as represented by the Governor of P.O. Box 2870–20100, Nakuru (hereinafter referred to as the County Government which expression shall where the context so admits include its successors and assigns) on the other part;

(Individually referred to as "Party" and collectively as "Parties")

ARTICLE 1.0: RECITALS AND DECLARATION OF COMMON INTENT

WHEREAS:

1.1 Article 6 of the Constitution of Kenya establishes a Government structure, at the National and County levels, which are distinct and interdependent and further provides that they shall conduct their mutual relations on the basis of consultation and cooperation with a service centric approach;

1.2 Article 186 (1) of the Constitution recognizes the respective functions and powers of the National and County Governments;

1.3 Paragraphs 15 and 16, Part One of the Fourth Schedule to the Constitution provides the functions of the national government in education to include: Education policy, standards, curricula, examinations and the granting of university charters and universities, tertiary educational institutions and other institutions of research and higher learning and primary schools, special education, secondary schools and special education institutions respectively;

1.4 Paragraph 9, Part Two of the Fourth Schedule to the Constitution provides for the functions of the county governments to include: Pre-primary education, village polytechnics, home craft centres and childcare facilities.

1.5 Article 189 of the Constitution provides for cooperation between national and county governments, including assisting, supporting and consulting and, as appropriate, implementing the legislation of the other level of government; and liaising with government at the other level for the purpose of exchanging information, coordinating policies and administration and enhancing capacity; AND in this regard, may set up joint committees;

1.6 The Intergovernmental Relations Act, CAP 265F establishes the Intergovernmental Relations Technical Committee (IGRTC) as an intergovernmental structure mandated with *inter alia* facilitating cooperation and consultation between the national and the county governments as provided under Articles 6 and 189 of the Constitution; and providing mechanisms for the transfer of power, functions and competencies to either level of government;

1.7 Article 43 *(f)* of the Constitution provides that every person has the right to education.

COGNIZANT that the issuance of bursaries by any level of government to any person is a social protection measure aimed to promote inclusive economic development and enhance human development objectives;

RESOLUTE that the discharge of the respective mandates pertaining to education necessitates a cooperative and consultative approach to deliver the constitutional right of education in an integrated manner and to ensure that the function is implemented in a harmonized system;

AWARE of the directives issued by the Office of the Controller of Budget in Circular No. 001/2025 dated 14th January 2025, which provided that for county governments to provide education support to the extent of issuance of bursaries and scholarships to primary, special education, secondary, universities and tertiary educational institutions, this must be undertaken within the framework of an intergovernmental agreement;

NOW THEREFORE, having considered the above the Parties hereby solemnly agree as follows:

ARTICLE 2: OBJECTIVES

2.1 The objectives of this Agreement are to: -

(a) Promote transparency and accountability in the utilization and management of bursaries and scholarships in the education sector

(b) Promote sharing of resources in education service delivery;

(c) Enhance and promote equitable access to quality and inclusive education;

2.2 The Parties shall make every reasonable effort to ensure the achievement of the objectives of this Agreement, collaboration and mutual respect for functional assignment.

ARTICLE 3: AREAS OF PARTNERSHIP

3.1 The Parties shall consult, cooperate and support each other in the issuance of

bursaries and scholarships to primary, special education, secondary, universities and tertiary educational institutions within Nakuru County.

3.2 Bursaries and scholarships will be issued to vulnerable learners, trainees and students in primary, special education, secondary, universities and tertiary educational institutions.

3.3 The criteria for identification of beneficiaries will be provided for by county legislation

ARTICLE 4: FINANCIAL ARRANGEMENTS

4.1 FUNDING

(a) In accordance with Article 189 of the Constitution, the funding for the bursaries by the county governments will be from the share of the county government allocation and will be appropriated by the county government and be withdrawn from the County Revenue Fund.

(b) The county government may mobilize resources from Development Partners and other Agencies with relevant approval to support the implementation of this Agreement.

4.2 COMPLIANCE WITH PUBLIC FINANCE MANAGEMENT ACT 2012 AND PUBLIC PROCUREMENT AND ASSETS DISPOSAL ACT 2015—

(a) The administration and management of funds under this Agreement shall be in accordance with the Public Finance Management Act, 2012 and attendant Regulations.

(b) Procurement of any goods and services relating to the programmes under this Agreement shall be in accordance with the provisions of the Public Procurement and Asset Disposal Act, 2015 and attendant Regulations.

4.3 The implementation of the activities under this Agreement will be funded on terms to be determined and agreed upon by the county government; and will be subject to availability of funds from the county government.

4.4 Any costs and expenses incurred by a party in relation to this Agreement will be borne and paid by the party incurring the same without a charge to or reimbursement from the other party.

ARTICLE 5: ROLES AND RESPONSIBILITIES OF THE PARTIES

5.1 ROLES OF THE NATIONAL GOVERNMENT

(a) Provide policy guidance to support the issuance of bursaries and scholarships to primary, special education, secondary, universities and tertiary educational institutions;

(b) Capacity building to support the County Government in the implementation of issuance of bursaries and scholarships to primary, special education, secondary, universities and tertiary educational institutions under this Agreement;

(c) Share with the county government, information on institutions, learners, trainees and students and their performance;

(d) Sensitize the staff, the managers of education institutions, within the national government's mandate, and other Government Ministries, Departments and Agencies on the implementation of this Agreement;

(e) Issue ministerial directives and guidelines to heads of institutions, education managers and other administrators necessary for the implementation of this Agreement;

(f) Provide quality and relevant data for the purposes of planning, monitoring and evaluation of this Agreement; and

(g) Report to Parliament on the implementation of this Agreement.

5.2 ROLES OF THE COUNTY GOVERNMENT

(a) Develop and/ or implement requisite legal framework through the enactment of county legislation to support the issuance of bursaries and scholarships to primary, secondary, universities and tertiary institutions;

(b) Budget for the implementation of the identified programmes under this Agreement;

(c) Sensitize the Nakuru County Government Officials, community members and other relevant stakeholders on the implementation of this Agreement;

(d) Issue County-level directives and guidelines on the implementation of bursaries and scholarships funds by the County Government; and

(e) Report to the Nakuru County Assembly on the progress of implementation of bursaries and scholarships.

5.3 JOINT ROLES OF THE PARTIES

The Parties shall:

(a) In accordance with Article 189 (2) of the Constitution as read with Section 23 of the Intergovernmental Relations Act, CAP 265F, establish a joint committee whose main mandate shall be to oversee the implementation of this Agreement. The joint committee shall comprise five technical officers representing the two levels of government; and shall conduct its meetings biannually.

(b) Through the joint committee, jointly annually review the progress of the co-operation under this Agreement; and prepare and submit annual financial reports to the National Assembly and County Assembly within 14 days after the end of every financial year;

(c) The joint committee shall prepare and submit quarterly monitoring and evaluation reports to the National Assembly, the County Assembly; and the National and County Governments Co-ordinating Summit, through IGRTC and the Office of the Controller of Budget within 14 days after the end of every quarter;

(d) Provide guidelines on identification of vulnerable learners;

(e) Cause to be kept, accurate financial records of the funds relating to the implementation of this agreement; and shall ensure that such funds are subjected to audit from their respective internal auditors, as well as the Office of the Auditor General, in accordance with its Constitutional and Statutory mandate; and

(f) Ensure compliance with Part IV of the Data Protection Act, CAP 411C on principals and obligations of personal data protection including the right to privacy and processing of data in a lawful, fair and transparent manner.

5.4 ROLES OF THE OFFICE OF THE CONTROLLER OF BUDGET

(a) Oversee the implementation of budgets in respect of the implementation of this Agreement

(b) Authorize withdrawal of public funds relating to the implementation of this Agreement

(c) Monitor the implementation of this Agreement

(d) Provide technical advice to the Parties in relation to the budget implementation in respect of this Agreement

(e) Prepare and submit budget implementation review reports to the National Assembly and County Assemblies, in relation to the implementation of this Agreement

ARTICLE 6: COMMENCEMENT AND DURATION

6.1 This Agreement will come into effect on the date of signature by both parties and will remain in force for a term of one (1) year unless terminated upon giving written notice to either party.

6.2 Either party may initiate a review to extend the term of this Agreement three (3) months prior to the expiry date. The parties shall mutually agree in writing on the length of the new term and such agreement shall form part of this Agreement.

ARTICLE 7: DISPUTE RESOLUTION

7.1 Any dispute that may arise out of the implementation and interpretation of this Agreement will be settled amicably through mutual negotiations between the Parties.

7.2 Where the Parties are unable to settle a dispute amicably, the dispute will be resolved in accordance with the provisions of Article 189 (3) and (4) of the Constitution; as read together with Part IV of the Intergovernmental Relations Act, CAP 265F.

ARTICLE 8: FORCE MAJEURE

Each party will notify the other party of any circumstances or event which is beyond its reasonable control and which makes the performance of its obligations under the Agreement impossible or so impractical as to be considered impossible under the circumstances.

ARTICLE 9: WAIVER

No waiver of any of the terms and conditions of this Agreement shall be binding or effectual for any purpose unless expressed in writing and signed by the Parties hereto giving the same, and any such waiver shall be effective only in the specific instance and for the purpose given. No failure or delay on the part of any of the parties hereto in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any right power or privilege preclude any other or further exercise thereof or the exercise of any other right power or privilege.

ARTICLE 10: INDEMNITY

Each party shall indemnify the other party, its officers, employees, and agents from and against any and all claims, liabilities, losses, damages, costs, and expenses, arising out of or related to third party claims arising from the failure of either Party to fulfil its obligations as set out herein.

ARTICLE 11: AMENDMENTS

This Agreement may be amended as may be required from time to time by mutual consent of the parties. Such amendment shall be in writing, shall come into force on the date of execution, and shall form part of this Agreement.

ARTICLE 12: ENTIRE AGREEMENT

This Agreement and any subsequent annexures constitute the whole agreement between the parties hereto and no variations thereof shall be effective unless made in writing and signed by both parties AND both parties hereby acknowledge that they are not entering into this Agreement in reliance upon any representations whether express or implied other than those made or expressly referred to herein.

ARTICLE 13: EXISTING AND FUTURE ARRANGEMENTS

13.1 Any existing arrangements with third parties that fall within the scope of this Agreement shall continue in so far as they are not inconsistent with this Agreement. In the event of any inconsistency, the existing arrangements shall be reviewed to ensure consistency with this Agreement.

13.2 The Parties herein, may either jointly or severally, and upon the requisite due diligence, enter into agreements with other third parties for purposes of supporting the implementation of this Agreement, provided that such arrangement with third parties is consistent with this Agreement.

ARTICLE 14: TERMINATION

14.1 Parties may terminate this agreement by mutual consent.

14.2 Where a Party is—

(a) unable or unwilling to carry out its obligations under this Agreement; or

(b) in material breach of this Agreement,

the other Party may give three (3) months' written notice of intention to terminate this Agreement through the authorized representative of the parties.

14.3 Termination of this Agreement shall be without prejudice to any accrued rights and obligations as at the date of termination. The termination of this Agreement will not affect the completion of any ongoing programmes commenced during the existence of this Agreement unless otherwise mutually agreed by the Parties in writing.

ARTICLE 15: PUBLIC PARTICIPATION

The Parties have conducted public participation in stakeholder consultation whose views informed the provisions of this Agreement.

ARTICLE 16: NOTICES, COMMUNICATION AND CONTACT PERSON

16.1 During the implementation of the programs defined in this Agreement, all the official communication will be done in writing or will be delivered by hand or sent by email to the addresses given below or such other addresses the recipient may be notified to by the other party in writing;

16.2 Any such notice, request or consent will be deemed to have been given or made when delivered either by person the authorized representative at the head office of the party to whom communication is addressed or sent by registered email or by email to such party as its registered address;

16.3 The addresses are as follows:

If delivered to Nakuru County Government:

The County Secretary
Nakuru County Government
P.O. Box 2870-20100,
Nakuru, Kenya
Email: info@nakuru.go.ke

If delivered to Ministry of Education:

The Cabinet Secretary
Ministry of Education
Jogoo House B, Harambee Avenue
P.O. BOX 30040-001400 Nairobi, Kenya
Tel:+254-020-3318581
Email: cabinetsecretarymoe@education.go.ke

IN WITNESS WHEREOF the parties hereto, being authorized representatives.

In the Presence of

JULIUS MIGOS OGAMBA,
Cabinet Secretary.

DORCAS ODUOR,
Attorney-General.

CALEB NYAMWANGE,
County Attorney.

In the prescence of the Chairperson of the Inter-Governmental Relations Technical Committee.

SUSAN KIHIKA,
Governor, Nakuru County.

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